

Case	Title / Nature of Case
9:00 AM Line 1 & 2 22-CIV-00794	LORI SLICTON, ET AL VS. SAN MATEO COMMUNITY COLLEGE DISTRICT, ET AL

LORI SLICTON
SAN MATEO COMMUNITY COLLEGE DISTRICT

FULVIO F. CAJINA
JOHN D. NIBBELIN

Defendant San Mateo Community College District and Skyline College's Motion for Summary Judgment or, in the Alternative, Summary Adjudication

TENTATIVE RULING:

1. This motion will have a late tentative due to Plaintiff's Ex Parte Application to continue the Motion for Summary Judgment, being heard one day prior to this Motion's hearing date on July 16, 2026. Parties will be able to review the late tentative after business hours, it will be deemed contested so no notice is required, and parties are to appear (Zoom is authorized).
2. Case Management Conference, parties to appear (Zoom is authorized).

LATE TENTATIVE RULING on Line 1: Motion for Summary Judgment:

For the reasons stated below, Defendants San Mateo Community College District's and Skyline College's (collectively, "Defendants") *unopposed* Motion for Summary Judgment ("MSJ"), filed March 4, 2026, is GRANTED. (Code Civ. Proc. § 437c.) Defendants' alternative Motion for Summary Adjudication ("MSA") is therefore DENIED AS MOOT.

Defendants' March 4, 2026 Request for Judicial Notice ("RJN") is GRANTED. (Evid. Code § 452(c), (d).)

Facts/background.

Plaintiffs Lori Slicton and George Buckingham ("Plaintiffs") are married and are/were professors at Skyline Community College, a member of the San Mateo County Community College District. (Defendants' UMF 1.) Mr. Buckingham taught history at Skyline College for 31 years before he retired on December 17, 2021. (UMF 18.) Ms. Slicton is currently a tenured professor who has been employed by the District for 33 years and is head of the Anthropology Department. Both Plaintiffs allege that they are disabled. Ms. Slicton has a degenerative eye/vision condition, and Mr. Buckingham claims "mobility issues that impact his ability to walk." (UMF 1, ¶¶ 23, 39.)

Plaintiffs initially filed this lawsuit on May 18, 2021 in the Alameda County Superior Court. The case was later transferred to this Court. Plaintiffs have amended the complaint several times, following a series of demurrers. The operative Fourth Amended Complaint (“4AC”) alleges that in 2015, Ms. Slicton began providing Defendants with evidence of her eye condition, and that from 2015 through the present, Defendants have failed to provide her with reasonable accommodations for her vision disability, and have taken steps in retaliation and harassment. Mr. Buckingham alleges that in 2016, he requested ADA accommodations (classrooms near office and restroom, an ergonomic assessment, and furniture in office and classrooms), but alleges that Defendants took no action in response to his requests. (UMF 4.)

The asserted claims.

In their 4AC, both Plaintiffs assert six causes of action against the San Mateo Community College District and Skyline College (“Defendants”), as follows: (1) discrimination (Govt. Code § 12940(a)); (2) harassment (Govt. Code § 12940(j)); (3) retaliation (Govt. Code § 12940(h)); (4) violation(s) of the Americans With Disabilities Act (“ADA”), 42 U.S.C. § 12132; (5) failure to prevent discrimination and harassment (Govt. Code § 12940(k)); and (6) disability discrimination (Govt. Code § 12940(n)).

Defendants move for summary judgment of the 4AC, or alternatively, for summary adjudication of all six asserted causes of action. The Motion is *unopposed*.

Legal standard.

A motion for summary judgment shall be granted if the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc. § 437c(c).) A defendant has met its burden of showing that a cause of action has no merit if the defendant shows that one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. (§ 437c(p)(2).) If a defendant meets this initial burden, the burden of production then shifts to the plaintiff to present evidence showing that a triable issue of one or more material facts exists as to that cause of action, or a defense thereto. (*Id.*)

“A triable issue of material fact exists if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion, in accordance with the applicable standard of proof.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.)

Plaintiff Slicton’s claims are time-barred.

Ms. Slicton alleges that in 2015, or alternatively, no later than 2018, Defendants violated her disability/employment rights, but Ms. Slicton did not file an administrative claim with the Department of Fair Employment and Housing (“DFEH”) until April 2020. Accordingly, her claims are time-barred.

Before asserting claims in court under California's Fair Employment and Housing Act ("FEHA"), an employee asserting a violation of Govt. Code § 12940 et. seq. must file a timely administrative complaint with the DFEH and receive a "right-to-sue" notice. (Govt. Code §§ 12960, 12965(c).) Prior to January 1, 2020, employees were required to file a DFEH complaint *within one year* of the alleged unlawful employment practice. (Govt. Code § 12960(e)(5) [pre-2020 versions].) Although, in 2020, the one-year DFEH filing deadline was extended to three-years, the year 2020 amendments to § 12960 were expressly "not intended to revive claims that have already lapsed." (Govt. Code § 12960(f)(3).)

An administrative complaint alleging discrimination under 42 U.S.C § 12132 (the Americans with Disabilities Act ("ADA")) must be filed with DFEH within 300 days after the alleged unlawful employment practice, or 30 days after notice that the state agency has terminated its proceedings under state law, whichever is earlier. (42 USC § 2000e-5(e)(1).)

Here, the evidence shows that Plaintiff Slicton believed that Defendants had violated her employment rights by 2015. (4AC, ¶ 25.) Ms. Slicton testified that she "made a formal request for accommodation" in 2015 for her vision disability. (UMF 5-7.) She testified that that she obtained a complete assessment of her vision disability from a U.C. Berkeley Low Vision Clinic and provided that assessment to Defendants, but she contends Defendants' Human Resources (HR) Department failed to coordinate an assessment. (Id.)

In April 2018, Ms. Slicton wrote to the Dean of her department with the District, complaining / reminding them that back in 2015, she had requested a disability accommodation due to her worsening vision condition. (UMF 7 [April 6, 2018 email].) In her 2018 correspondence, Ms. Slicton stated that the "District has had everything since fall 2015," but despite Defendants' promises to follow-up, "nothing has taken place." (Id.) Ms. Slicton sent her 2018 correspondence two years before she filed her first DFEH complaint. (UMF 6-8.) Ms. Slicton stated unequivocally that she believed Defendants had failed to accommodate her back in 2015. (UMF 6-7.) She further testified that several of her colleagues had recommended that she speak to an attorney about what she believed were employment law violations, but that she chose not to, because she was hoping to avoid having to retain an attorney. (Id.) She also testified that she did not know that she needed to file a DFEH complaint. (Id.)

Ms. Slicton's April 6, 2018 correspondence to the District's Dean and HR Department stated that "due to my deteriorating vision ... I am in need of reasonable accommodations at work." (UMF 5.) When Defendants responded by informing Ms. Slicton that she would need to provide a current doctor's note "because it has been 2-3 years," Ms. Slicton responded: "The District has had everything since Fall 2015. Ingrid is one of the people who was in the office and promised to follow up ... She didn't." (Id.)

Despite the foregoing, Ms. Slicton did not file her first DFEH administrative complaint until April 15, 2020, roughly five years after she believed that the District had violated her rights, and about two years after her April 2018 correspondence complaining that her requests still had not been addressed. (UMF 7-8.) By the law applicable at the time, Ms. Slicton was required to file a DFEH administrative complaint no later than the Fall of 2016, or alternatively, by April 2019 (or 65 days earlier for her

federal claim), but she did not do so. Accordingly, each of her claims is time-barred.

Plaintiff Buckingham's claims are time-barred.

Plaintiff Buckingham filed his sole DFEH administrative complaint on April 13, 2021 (4AC, Ex. 2; UMF 9), in which he alleged that in “Spring 2016,” he requested accommodation for his disability, but that “no action was taken on part of the employer.” (UMF 4.) Accordingly, his disability-related claims accrued in the Spring of 2016. Under the then-applicable one-year limitation period to file, Mr. Buckingham was required to file an administrative complaint with the DFEH no later than the Spring of 2017, or 65 days earlier for his ADA claim. (Govt. Code § 12960(e)(5) [pre-2020 version]; 42 U.S.C. § 2000e-5(e)(1).) Mr. Buckingham’s 2016 disability-related allegations are therefore time-barred. (Id.)

Plaintiff Buckingham also alleges that he was “constructively terminated” in 2021 when Defendants failed to grant his first-ever request for accommodation to continue teaching remotely after the end of the COVID-19 shutdown. He alleges that “[f]earing that his life was in danger on account of being forced to go back on campus to teach despite his susceptibility to Covid-19,” he resigned from his position, retiring...” (UMF 16.) Mr. Buckingham retired from the District effective December 17, 2021. (UMF 18.)

Mr. Buckingham’s “constructive termination” claim fails for at least two reasons. First, and dispositively, his sole DFEH complaint made no mention of the District denying his request to continue teaching remotely due to COVID. (UMF 17.) Mr. Buckingham filed his sole DFEH complaint on April 13, 2021. His 4AC alleges that “in late 2021,” he requested an accommodation to continue teaching remotely. (UMF 17, 18.) Thus, the District’s alleged denial of this claimed disability accommodation request occurred after he filed his one and only DFEH complaint, which made no mention of COVID or a request to teach remotely. (UMF 17.)

Further, the note from Mr. Buckingham’s physician does not state that Mr. Buckingham needed to continue teaching remotely due to his susceptibility to COVID. (UMF 20.)

When Mr. Buckingham retired on December 17, 2021 (UMF 18), he believed he was being forced to resign against his will. Thus, his then-applicable three-year limitation period to file a DFEH complaint started to run on that date, and expired three years later, on December 17, 2024. Because he never filed a second DFEH complaint alleging constructive termination, such a claim is again time-barred. (Govt. Code § 12960(e)(5) [2020 version].)

Plaintiffs offer no evidence to toll the statute of limitations.

In their 4AC, Plaintiffs allege that their deadline to file their DFEH complaints was tolled from 2015/2016 to April 2020 and 2021 due to alleged continuing violations of their employment rights. (4AC, ¶ 23.) These are bare allegations, however, with no evidentiary support.

Under the continuing violation doctrine, a plaintiff’s filing deadline may be tolled where an employer engages in repetitive violations of an employee’s FEHA rights and the employer’s actions (1) were

sufficiently similar in kind, (2) occurred with reasonable frequency, and (3) did not acquire a degree of permanence. (*Acuna v. San Diego Gas & Elec. Co.* (2013) 217 Cal.App.4th 1402, 1412.) The plaintiff bears the burden of proof of showing that his or her claims are timely under the continuing violation doctrine. (*Jumaane v. City of Los Angeles* (2015) 241 Cal.App.4th 1390, 1402.) The continuing violations doctrine applies where there is evidence of a “persistent pattern” of allegedly unlawful conduct that occurs before and during the limitations period. (*Richards v. CH2M Hill, Inc.* (2001) 26 Cal.4th 798, 822-823.)

Here, Plaintiffs offer no evidence that after the District allegedly violated their rights in 2015/2016, the District continued with a pattern of conduct that supports application of the continuing violations doctrine. The 4AC’s tolling allegations are but conclusions. Defendants met their initial burden on summary judgment in demonstrating that Plaintiffs’ claims accrued by 2015-2016, that Plaintiffs did not file timely DFEH complaints, and that their claims are therefore time-barred. Plaintiffs have not opposed the Motion, have not disputed any of the facts set forth in Defendants’ Separate Statement, and have therefore presented no evidence that might raise a triable issue as to their “continuing violations” allegation. (See undisputed Fact No. 12 [stating: “In response to discovery, Plaintiffs Slicton and Buckingham failed to offer any facts and have served zero documents to support the application of the continuing violations doctrine to toll the then-applicable one-year limitation period to file an administrative complaint with DFEH.”])

In addition to being time-barred, Plaintiff Slicton’s discrimination and retaliation claims fail as a matter of law because she was not subjected to any adverse employment action.

To establish discrimination and/or retaliation under Govt. Code § 12940, a plaintiff must prove that he/she was subjected to an “adverse employment action.” (See CACI 2500; 2505), which means the employer “has taken an action or engaged in a course or pattern of conduct that ... materially and adversely affected the terms, conditions, or privileges of plaintiff’s employment.” (CACI 2509.)

“Minor or relatively trivial adverse actions or conduct by employers or fellow employees that, from an objective perspective, are reasonably likely to do no more than anger or upset an employee cannot properly be viewed as materially affecting the terms, conditions, or privileges of employment and are not actionable ...” (*Yanowitz v. L’Oreal USA, Inc.* (2005) 38 Cal.4th 1028, 1054-1055.) “An ‘adverse employment action’ requires a ‘substantial adverse change in the terms and conditions of the plaintiff’s employment’.” (*Holmes v. Petrovich Development Co., LLC* (2011) 191 Cal.App.4th 1047, 1063.)

Put differently, “[a] change that is merely contrary to the employee’s interests or not to the employee’s liking is insufficient. Workplaces are rarely idyllic retreats, and the mere fact that an employee is displeased by an employer’s act or omission does not elevate that act or omission to the level of a materially adverse employment action.” [Citation.] If every minor change in working conditions or trivial action were a materially adverse action then any ‘action that an irritable, chip-on-the-shoulder employee did not like would form the basis of a discrimination suit.’” (*McRae v. Dep’t of Corr. & Rehab.* (2006) 142 Cal.App.4th 377, 386-387.) A plaintiff must show the employer’s retaliatory actions had a detrimental and substantial effect on the plaintiff’s employment. (*Id.*)

Further, “discrimination claims address only explicit changes in the terms, conditions, or privileges of employment; that is, changes involving some official action taken by the employer ... such as hiring, firing, failing to promote, adverse job assignment, significant change in compensation or benefits, or official disciplinary action.” (*Roby v. McKesson* (2009) 47 Cal.4th 686, 706; *Doe v. Dept. of Corr. & Rehab.* (2019) 43 Cal.App.5th 721, 734-735.)

Here, even viewing the evidence in a light favorable to Plaintiffs, Ms. Slicton was never subjected to any adverse employment action. Ms. Slicton, to this day, remains a tenured professor with the District who, unlike other professors, continues to teach her classes entirely remotely as special dispensation to accommodate her visions issues. (UMF 23-38; 43). While other professors returned to in-person classes several years ago (in early 2022), Ms. Slicton has continued reaching remotely for six years running. (Id.)

Nor has she been subjected to any of the traditional examples of an “adverse employment action.” There is no evidence that she has ever been terminated, ever been denied a promotion, ever suffered any adverse job assignment(s), ever received a pay decrease, ever been denied a pay increase, or ever been subject to any official disciplinary action. (Id.)

Rather than identify any colorable adverse employment action, Ms. Slicton’s 4AC recites several minor inconveniences and actions that she disfavored, such as the District’s alleged failure to provide her with print-outs of Power Point presentations, and an allegation that the District *considered* requiring Ms. Slicton and her husband to have separate offices rather than a shared office. (UMF 1.) These allegations are mostly unsupported by evidence, and in any event, none of these grievances can reasonably be viewed to have “materially and adversely” affected the terms, conditions, or privileges of her employment. (CACI 2509.) The evidence also shows that Plaintiffs, in fact, were never forced to have separate offices. (UMF 44, 52, 60.)

Ms. Slicton’s 4AC alleges that for about a two-month period prior to the COVID shutdown, she was required to teach her courses from a newly-constructed “Building 12.” But this fact, again, cannot reasonably be characterized as a form discrimination, retaliation, or an adverse employment action. The evidence shows that in 2018, the District began constructing a new Building 12 that would house numerous classrooms in an upgraded, state-of-the-art facility. (UMF 35-42.) The District held several meetings with Ms. Slicton to address concerns she had raised regarding teaching in the new building. Ms. Slicton agreed to teach in Building 12 to “to see how it works out.” (UMF 37.) After only two months, the District agreed to permit Ms. Slicton to switch back her courses to another building (while other professors continued teaching in Building 12), and agreed to assist her with making the switch back to another building. (Id.) Nothing about this event suggests any discrimination, retaliation, or wrongdoing.

In her 4AC and her discovery responses, Ms. Slicton also alleged that two of her courses (110 Cultural Anthropology and 125 Biological Anthropology) were “cancelled” and given to a “younger, less experienced professor.” (UMF 1, ¶¶ 30 & 36; UMF 45, 46.) This allegation is not supported by evidence. To the contrary, the evidence shows that since at least 2018, Ms. Slicton has taught a full load of courses every Fall and Spring semester, *including* both 110 Cultural Anthropology and 125 Biological Anthropology. (UMF 46.) The evidence also shows that Ms. Slicton voluntarily chose not

to teach summer courses in 2019 and 2020, but has taught summer classes every year since then. (UMF 46, 47, 48.) In short, Plaintiff Slicton offers no evidence that the District ever took any course(s) away from her.

Because she has never been subjected to any adverse employment action, Ms. Slicton's discrimination and retaliation claim(s) fail as a matter of law.

In addition to being time-barred, Plaintiff Buckingham's discrimination and retaliation claims fail because he was not subjected to any adverse employment action.

Aside from his "constructive termination" claim, which, as noted above, is time-barred, Mr. Buckingham also has not shown that he was subjected to any adverse employment action. His only other complaints/allegations consist of trivial matters that are both unsupported by evidence, and which, viewed objectively, cannot reasonably be viewed as actions that substantially affected the terms, conditions, or privileges of his employment. (CACI 2509.)

Mr. Buckingham alleges, for example, that the District threatened to disallow him and his wife to share an office. But as noted above, that actually never happened. (UMF 44.) The evidence indicates that Plaintiffs were always allowed to share an office. (Id.)

Mr. Buckingham's DFEH complaint alleges that the District required him to complete a Comprehensive Self-Evaluation instead of a Standard Self-Evaluation (UMF 9, 53), that in 2019, an elevator was out of service for seven weeks (which naturally would have impacted many employees, not just Mr. Buckingham) (UMF 9, 54), and that he was supposed to be on a hiring committee for a full time Historian in Fall 2019 (UMF 9). None of these alleged acts or omissions, even if they had been properly supported by evidence, can reasonably be viewed as substantially affecting the terms, conditions, or privileges of his employment. Mr. Buckingham offers no explanation as to how these alleged actions/omissions were discriminatory, harassing, or retaliatory. (UMF 11, 12.) Thus, even if Mr. Buckingham had shown that these actions/events took place, such relatively trivial inconveniences could not reasonably be viewed as an adverse employment action.

Plaintiffs offer no evidence supporting their "harassment-hostile work environment" claim.

Govt. Code § 12940(j) make it unlawful for an employer to "harass" an employee because of plaintiff's protected characteristic. To prevail on a harassment claim under FEHA, a plaintiff must produce evidence that plaintiff was subjected to "offensive comments or other abusive conduct" that is (1) based on a "protected characteristic" (here, disability, age, or marital status) and (2) "sufficiently severe or pervasive as to alter the conditions of plaintiffs' employment." (*Doe v. Dep't of Corr. & Rehab.* (2019) 43 Cal.App.5th 721, 736.) "To constitute harassment, the conduct must be so objectively severe or pervasive as to create a hostile or abusive working environment." (*Id.*) "Factors to consider in this context include the frequency of the conduct, its severity, whether it is physically threatening or humiliating, and whether it unreasonably interferes with the employee's work performance." (*Id.*; CACI 2521A.)

Here, Plaintiffs' 4AC (Second Cause of Action) alleges, in part:

56. Defendants violated California Government Code § 12940 (a) with regard to Plaintiffs when they harassed Plaintiffs on the on the basis of age, disability, and marital status by, among other things, creating a work environment that was hostile, intimidating, oppressive and abusive which has lasted for years – from 2015 through the present for SLICTON, and from 2019 through the date of his constructive termination for BUCKINGHAM.

57. Defendants' harassing conduct, which included creating a hostile work environment for Plaintiffs by, among other things, micromanaging Plaintiffs, belittling or failing to acknowledge their legitimate accessibility concerns, ignoring their requests for reasonable accommodations, and taking actions to isolate Plaintiffs by, among other things, failing to accommodate Plaintiffs and penalizing Plaintiffs on account of their marital status.

This claim cannot survive summary judgment, because Plaintiffs offer no evidence of any harassment, let alone "severe or pervasive" harassment, instead these allegations are at most conclusions.

As for Defendants providing accommodations for Plaintiffs' claimed disabilities, the only evidence before the Court indicates that Defendants repeatedly and reasonably sought to accommodate/address Plaintiffs' accommodation requests. (See, e.g., UMF No. 33, 35-41 [showing Defendants' extensive efforts and expense to address Ms. Slicton's vision-related issues]; UMF 42 [since March 2020, including long-after in-person classes returned in 2022, the District has continued to allow Ms. Slicton to teach all of her courses remotely].)

Because Plaintiffs' discrimination and harassment claims fail as matter of law, so too does the derivative Fifth Cause of Action for "failure to prevent discrimination and harassment (Govt. Code § 12940(k)).

The Fifth Cause of Action is predicated on the viability of the underlying claims for discrimination, harassment, and retaliation, and therefore, it also fails as a matter of law.

Conclusion.

For the foregoing reasons, Defendants' Motion for Summary Judgment is GRANTED. In addition to submitting an Order after hearing, Defendant is to also submit a proposed final Judgment form.

Except as modified by the Court after hearing, this tentative ruling shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 3

23-CIV-00924 GENENTECH, INC. VS. MILLENNIUM PHARMACEUTICALS, INC.

GENENTECH, INC.
MILLENNIUM PHARMACEUTICALS, INC.

JEFFREY E FAUCETTE
BRIAN CANNON

Defendant's Motion for Summary Judgment

TENTATIVE RULING:

Continued at CMC on July 15, 2026, to new hearing date November 6, 2026, 9:00 a.m.
